

	foreclose thus arises out of an obligation (e.g.,) the promissory note and related deed of trust.”)] Plaintiff submits evidence that in November of 2023, Plaintiff and Defendant Global LA executed a Secured Repayment Note in the amount of \$2,828,353. (SS Fact No. 13, 18, 23, 28.) Global LA’s obligations under the Secured Promissory Note were secured by deeds of trust recorded on the four real properties located at 580 N Hargrave Street, Banning, CA; 8041 Bulwer Drive, Los Angeles, CA; 11685 Picturesque Drive, Studio City, CA; and 3929 Fredonia Drive, Los Angeles, CA. (SS Fact No. 14, 19, 24, 29.) Defendants received the \$2,828,353 under the Secured Repayment Note. (SS Fact No. 15, 20, 25, 30.) In January of 2024, Plaintiff and Defendant Global LA signed a First Amendment to Secured Repayment Note. (SS Fact No. 16, 21, 26, 31.) Defendants are in default under the Secured Repayment Note, as amended, in the amount of \$1,614,253, not including interest, legal fees, or costs. (SS Fact No. 17, 22, 27, 32.) Defendants submit the Secured Repayment Notes as well as the Deeds of Trust for the four properties at issue as Exs. 3, 6, and 8-11. The Deeds of Trust for each of the four properties expressly grants Plaintiff the properties “WITH POWER OF SALE,” for the purpose of securing Defendants’ loan obligations. (Plaintiff’s Exs. 8-11.) In opposition, Defendants argue that the secured properties have already been foreclosed upon by third-party lien holders, with Defendants receiving no proceeds, citing to the Azadzoi Depo.
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at 168:1-175:20. (ROA 157, Opposition at 168:1-175:20.)

The only one of the four properties referenced in this portion of Defendant's deposition is the Ferdonia property; Azadzoi testifies that this property is not sold but is in preforeclosure and is for sale. (Azadzoi Depo at 168:18-23.)

Defendants also vaguely state that the current status, encumbrances, and fair market values of the remaining collateral properties present disputed factual questions regarding the value available to satisfy any judgment. This does not create a triable issue of material fact as to the issues of the default on the promissory note and Plaintiff's deeds of trust.

Lastly, Defendants contend that Plaintiff cannot simultaneously pursue a money judgment on the notes while also seeking judicial foreclosure on the same collateral without proceeding in a single action, citing to Walker v. Community Bank (1974) 10 Cal.3d 729, 733-734. This isn't actually a correct statement of the law in Walker, as the court held that "[u]nder California law 'the creditor must rely upon his security before enforcing the debt, [and that] [i]f the security is insufficient, his right to a judgment against the debtor for the deficiency may be limited or barred by sections 580a, 580b, 580d, or 726 of the Code of Civil Procedure.'" It is only when "the creditor sues on the obligation and seeks a personal money judgment against the debtor without seeking therein foreclosure of such mortgage or deed of trust, he makes an election of remedies, electing the single remedy of a personal action, and thereby waives his right

to foreclose on the security or to sell the security under a power of sale.” (Id.)

This indicates that the proper course of action is to do what Plaintiff has done here, and seek to foreclose the properties, and to the extent that the security is insufficient, obtain a money judgment insofar as such is not barred by the relevant Code of Civil Procedure sections.

Plaintiff has met its burden and shown that Defendants are indebted to Plaintiff, and Plaintiff holds security interests in the form of the subject deeds of trust. Defendants have not established a triable issue of material fact as to the foreclosure cause of action.

Request for Continuance

Defendants’ request for a continuance to conduct additional discovery pursuant to Code Civ. Proc., § 437c(h) is **denied**. Defendants did not submit any declarations regarding their request for a continuance as required pursuant to § 437c(h).

Defendant EM Investment Group

Defendant EM Investment Group LLC opposes the MSA as to the 4th cause of action for judicial foreclosure regarding only 11685 Picturesque Drive.

EM Investment submits evidence that it purchased the property at a foreclosure sale and obtained title thereto, pursuant to the Grant Deed recorded on April 10, 2025. (EM Fact No. 43).

There was a Senior Deed of Trust recorded against the Picturesque Dr. property on 7/19/23

		before the 11/9/23 Deed of Trust that Plaintiff submits. (EM Fact No.37.) Plaintiff's 11/9/23 Deed of Trust is thus a junior lien. Defendant EM later purchased the Picturesque Property at the foreclosure sale, and obtained title thereto, pursuant to the Grant Deed recorded on April 10, 2025 (the "2025 Grant Deed"). (EM Fact No. 43). By operation of law, Plaintiff's Junior Lien was thus extinguished upon the foreclosure by the Senior Deed of Trust at the foreclosure sale, which took place on December 11, 2024. (EM Fact No. 44; see Decon Grp., Inc. v. Prudential Mortg. Cap. Co., LLC (2014) 227 Cal.App.4th 665, 670–71.) Accordingly, the motion for summary adjudication as to Defendant EM Investment with respect to the 4th cause of action concerning the property located at 11685 Picturesque Drive, Studio City, CA 91604 is denied, as Plaintiff fails to establish an enforceable lien/security interest on the subject property. Plaintiff shall give notice.
54	<i>Guzman vs. Cisneros</i>	Before the Court is Defendants Leobardo Vasquez Cisneros and United Plant Growers Inc.'s unopposed Motion for Summary Judgment of Anastacio Benjamin Tovasquez, Nicholas Ignacio Llano, and Damien Ismael Apurathal's Complaint for negligence/motor vehicle, as well as a Request for Judicial Notice. The unopposed Request for Judicial Notice is GRANTED.